# POLICY ON PREVENTION, PROHIBITION, AND REDRESSAL OF SEXUAL HARASSMENT AT THE WORKPLACE

## INTRODUCTION

- IAgami Technology Private Limited is committed to providing a safe and conducive work environment that enables employees to work without fear of prejudice, gender bias, or sexual harassment.

- Our policy is meticulously designed to safeguard the dignity of every employee by extensively addressing issues related to sexual harassment.

- It is in strict compliance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition, and Redressal) Act, 2013, and pertinent provisions of the Indian Penal Code, 1860.

## OBJECTIVES

- Our goal is to establish and maintain a work environment that is safe and secure, ensuring it is free from any form of sexual harassment. This includes implementing policies and practices that foster a culture of respect and dignity for all employees.

- We are committed to providing a comprehensive and effective redressal mechanism for addressing complaints of sexual harassment. This involves ensuring that all employees feel comfortable and empowered to report any incidents of harassment and receive prompt and fair resolution to their complaints.

- We are dedicated to promoting gender equality in the workplace and preventing any form of discrimination based on sex. This includes advocating for equal opportunities, fair treatment, and the eradication of gender-based biases and stereotypes.

- It is our priority to raise awareness about sexual harassment and provide ongoing education and training to all employees to promote understanding of appropriate workplace behavior, respect for boundaries, and the development of a supportive and inclusive work environment for everyone.

- Sexual harassment in the digital workplace is strictly prohibited. This includes unwelcome conduct through electronic communication channels such as emails, chats, social media, and video conferencing platforms.

- The policy extends to instances where employees face sexual harassment from third parties, such as clients, vendors, or visitors. The company will take the necessary steps to address and redress such grievances promptly.

## SEXUAL HARASSMENT

Sexual harassment includes any unwelcome sexually inclined behavior, whether directly or indirectly, such as:

- ✓ Physical contact and advances

- ✓ A demand or request for sexual favors

- ✓ Making sexually colored remarks
- ✓ Showing pornography
- ✓ Any other unwelcome physical, verbal, or non-verbal conduct of a sexual nature

**AGGRIEVED WOMAN**

- ➢ An aggrieved person refers to any individual, regardless of gender, who alleges to have been subjected to any act of sexual harassment. This includes permanent employees, temporary staff, interns, apprentices, and any person engaged by the company in any capacity.

**WORKPLACE**

The workplace includes:

- ➢ All offices, branches, or other premises where our company conducts business.
- ➢ Any place visited by the employee arising out of or during employment, including transportation provided by the employer.

**LEGISLATIVE FRAMEWORK - Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013**

The Act mandates:

- ➢ **Prevention:** Employers must create a safe working environment and take proactive measures to prevent sexual harassment.
- ➢ **Prohibition:** Employers must prohibit any form of sexual harassment at the workplace.
- ➢ **Redressal:** Employers must provide a mechanism for the redressal of complaints of sexual harassment, including the establishment of an Internal Complaints Committee (ICC).

**INDIAN PENAL CODE, 1860**

Sexual harassment is recognized as a criminal offense under various sections of the Indian Penal Code, including:

- ✓ Section 354A: Outlines the offense of sexual harassment and the associated punishment.
- ✓ Section 354B: Pertains to assault or use of criminal force on a woman with the intent to disrobe.
- ✓ Section 354C: Pertains to voyeurism.
- ✓ Section 354D: Pertains to stalking.

**PREVENTION - Awareness and Training**

1. **Training Programs:** Regular training and awareness programs will be conducted to educate employees about sexual harassment, their rights, and the redressal mechanism.

2. **Display of Information:** Information about the policy, the composition of the ICC, and the contact details of its members will be prominently displayed at all workplace locations.

**Internal Complaints Committee (ICC)**

1. **Composition:** The ICC will consist of:

- A Presiding Officer, who is a senior woman employee.
- At least two members from amongst employees, committed to the cause of women or have experience in social work or legal knowledge.
- One external member from an NGO or a person familiar with issues related to sexual harassment.

2. **Tenure:** The members of the ICC will hold office for a period not exceeding three years from the date of their nomination.

3. **Roles and Responsibilities:**

- To receive and redress complaints of sexual harassment.
- To ensure confidentiality during the process of inquiry.
- To recommend actions based on the findings of the inquiry.

**PROHIBITION - Code of Conduct**

All employees are expected to adhere to a code of conduct that promotes respect, dignity, and equality. Any form of sexual harassment, as defined above, is strictly prohibited and will not be tolerated.

**Reporting Mechanism**

Employees are encouraged to intervene or report if they witness any form of sexual harassment in the workplace. Bystander intervention is a critical aspect of maintaining a safe and respectful work environment

1. **Complaint Lodging:** An aggrieved woman can complain in writing to the ICC within three months from the date of the incident. This period can be extended if the ICC is satisfied with the reasons for the delay.

2. **Assistance**: If the aggrieved woman is unable to make a complaint in writing, the ICC will provide all necessary assistance.

**REDRESSAL - INQUIRY PROCESS**

- **Receipt of Complaint**: Upon receipt of the complaint, the ICC will acknowledge it and inform the accused about the complaint.
- **Conciliation**: Before initiating an inquiry, the ICC may try to settle the matter between the aggrieved woman and the respondent through conciliation, provided that no monetary settlement is made as a basis of conciliation.

- **Inquiry**: If conciliation is not possible or if the aggrieved woman insists, the ICC will proceed with an inquiry. The inquiry will be completed within 90 days.

- **Principles of Natural Justice**: Both parties will be allowed to be heard, and a copy of the findings will be provided to both parties to submit their responses.

**ACTIONS AND RECOMMENDATIONS**

- **If Found Guilty**: If the respondent is found guilty, the ICC may recommend actions such as:
  - ✓ Written apology
  - ✓ Warning
  - ✓ Reprimand or censure
  - ✓ Withholding of promotion or pay rise
  - ✓ Termination of employment
  - ✓ Counseling sessions
  - ✓ Community service
- **If Found Not Guilty**: If the respondent is found not guilty, no action will be taken against them. However, if the complaint is found to be malicious or made with false evidence, the ICC may recommend actions against the complainant.

**APPEAL**

Any party aggrieved by the recommendations of the ICC or non-implementation of such recommendations may appeal to the appropriate authority as per the rules within 90 days from the date of recommendations.

**CONFIDENTIALITY**

All complaints, investigations, and findings will be kept confidential. The identity of the complainant, respondent, and witnesses will not be disclosed except where required under law or for conducting an investigation.

**PROTECTION AGAINST RETALIATION**

Our Company strictly prohibits any form of retaliation against employees who report incidents of sexual harassment or participate in the inquiry process. Any act of retaliation will be subject to disciplinary action.

**MONITORING AND REVIEW**

- **Annual Report**: The ICC will prepare an annual report and submit it to the employer and the District Officer. The report will include details of the number of cases filed and their disposal.

- **Policy Review**: This policy will be reviewed regularly to ensure it remains effective and relevant.

Changes will be made as required by law or organizational needs.

**RESPONSIBILITIES OF EMPLOYEES**

- **Adherence**: Employees must adhere to this policy and the associated guidelines.
- **Reporting**: Employees are encouraged to report any incident of sexual harassment they witness or experience.
- **Cooperation:** Employees must cooperate with the ICC during inquiries and investigations.

**RESPONSIBILITIES OF MANAGEMENT**

- **Implementation**: Management must ensure the implementation of this policy.
- **Support**: Management must support the ICC in conducting inquiries and implementing recommendations.
- **Awareness**: Management must ensure regular training and awareness programs are conducted.

**CONCLUSION**

Our firm is committed to fostering a work environment free from sexual harassment. By adhering to this policy, we ensure the dignity and respect of all employees, thereby contributing to a positive and productive workplace. Any employee found violating this policy will face strict disciplinary action. For further information or clarification, employees may contact the HR department or the ICC.

## CHANGE LOG:

| Version | Date | Author | Section | Change Description |
|---|---|---|---|---|
| 1.0 | 15-05-2020 | HR | Overall | Release of the Policy on Prevention, Prohibition, And Redressal of Sexual Harassment at The Workplace for this financial year. |
| 1.1 | 13-08-2024 | HR/Balaji | Overall | Release of the Policy on Prevention, Prohibition, And Redressal of Sexual Harassment at The Workplace for this financial year. |

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